

25STCV26023 25STCV26023

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-07-16

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Case Number: 25STCV26023 Hearing Date: July 16, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

KRISTEN

SUTHERLAND, et al.,

Plaintiffs,

vs.

GENERAL

MOTORS, LLC,

Defendant.

Case No.:

25STCV26023

Hearing

Date:

July 16,

ORDER
OVERRULING DEMURRER TO SECOND AMENDED COMPLAINT
AND DENYING MOTION TO STRIKE

I. BACKGROUND

Plaintiffs

Kristen Sutherland ("Kristen") and Keith Sutherland ("Keith") entered into a warranty contract with Defendant General Motors, LLC ("GM") regarding a 2022 GMC Yukon XL ("subject vehicle"). The subject vehicle allegedly has defects and nonconformities. GM allegedly was aware of the subject vehicle's defects and failed to disclose the existence of defects at all times to Plaintiffs. GM also failed to replace or reimburse Plaintiffs for the vehicle. Plaintiffs sue GM for five causes of action, including fraudulent concealment and violation of the Consumers Legal Remedies Act.

On March 10, 2026, GM filed the instant demurrer with motion to the strike to the SAC's Fourth and Fifth Causes of Action for fraud on the grounds they are barred by the statute of limitations and fail to state facts sufficient to constitute a cause of action against GM. Plaintiffs filed an opposition. GM filed a reply.

II. LEGAL STANDARD

Code of Civil Procedure section 430.101

states: "The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who filed the pleading does not have the legal capacity to sue; (c) There is another action pending between the same parties on the same cause of action; (d) There is a defect or misjoinder of parties; (e) The pleading does not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible; and (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct."

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

III. DISCUSSION

A. Statute of Limitations

GM first demurrers to both the fourth and fifth cause of action for fraudulent concealment and violation of the Consumer Legal Remedies Act (“CLRA”) on the basis they are barred by the three-year statute of limitations. Both causes of action are based upon an intent to defraud by intentionally withholding relevant information regarding the subject vehicle's defective engine, making both causes of action for relief on the grounds of fraud. (SAC ¶ 39.)

Pursuant to section 338, subdivision (d), any action for relief on the ground of fraud must be brought within three years of accrual of the cause of action. However, the discovery rule “postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action [for fraud].” (Fox v.

Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 807.) Plaintiffs “are required to conduct a reasonable investigation after becoming aware of an injury, and are charged with knowledge of the information that would have been revealed by such an investigation.” (Id. at p. 808.) “The limitations period begins once the plaintiff has notice or information of circumstances to put a reasonable person on inquiry.” (Alexander v. Exxon Mobil (2013) 219 Cal.App.4th 1236, 1251, citation omitted).

If a plaintiff's complaint shows, on its face, that the plaintiff's claim would be barred by the statute of limitations without the benefit of the discovery rule, the complaint “must specifically plead facts to show (1) the time and manner of discovery, and (2) the inability to have made earlier discovery despite reasonable diligence.” (Fox, supra 35 Cal.4th at p. 809, citation omitted.)

Although the date of purchase was of the subject vehicle was December 30, 2021, Plaintiffs allege the first time Plaintiffs were, or should have been, made aware of the defective engine was July 7, 2025. (SAC ¶¶ 5, 43.) On July 7, 2025, Plaintiffs delivered the subject vehicle to GM's authorized repair facility to perform “recall N252494001, which addresses a condition wherein ‘the connecting rod and/or crankshaft engine components in these vehicles may have manufacturing defects that can lead to engine damage and engine failure. If the engine fails during vehicle operation, the vehicle will lose propulsion, increasing the risk of a crash.’” (SAC ¶ 42.) Prior to July 7, 2025, Plaintiffs had not presented the vehicle for engine repair. (SAC ¶ 41.) At the appointment, GM's authorized technician stated the vehicle was operating as intended and was safe. (Ibid.) Plaintiffs continued to experience the same issues caused by the engine after said appointment. (SAC ¶ 44.) Plaintiffs have sufficiently pled the time and manner of discovery (or when discovery should have occurred) by outlining the first attempt at engine repair, and the persisting problem.

The SAC also alleges sufficient facts pleading Plaintiffs could not have been made aware of the fraud concerning the defective engine earlier. GM and GM's agents allegedly failed to disclose the defective engine or otherwise provide information necessary for Plaintiffs to discover the defect. (SAC ¶¶ 37-40.) Plaintiffs did not bring the vehicle in for service concerning engine defects until July 7, 2025, pursuant to the safety recall

issued by GM on April 24, 2025. (SAC ¶¶ 41-42, 65.) Plaintiffs have adequately pled inability to have reasonably discovered the defect until, at the earliest, April 24, 2025, when the recall was issued. Therefore, Plaintiffs have adequately pled that this action accrued, at the earliest, on April 24, 2025. Plaintiffs' initial complaint, filed on September 5, 2025, falls within the statute of limitations for a fraud cause of action.

The Court overrules the demurrer as to both the fourth and fifth causes of action as to the issue of the statute of limitations.

B. Required

Specificity / Duty – Fraudulent Concealment

GM next demurs to the fourth causes of action for fraudulent concealment on the basis it is not pled with required specificity and that there is no duty to disclose. The Court ruled on these issues when addressing GM's demurrer to the first amended complaint ("FAC"), finding the FAC alleged sufficient facts to meet the required particularity and to establish a duty to disclose. (See February 10, 2026, minute order.) The SAC has not been amended in such a manner that raised a new potential argument regarding these issues; therefore, GM has no basis to demur on these grounds. (See § 430.41, subd. (b): "A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer.")

The Court overrules the demurrer as to these issues, as the Court has already addressed these issues and GM has no legal authority to present new argument. The demurrer as to the fourth amended complaint is OVERRULED.

C. Notice

– Violation of the CLRA

GM demurs to the fifth cause of action for violation of CLRA on the basis it does not comply with the Civil Code section 1782 notice requirements. Demurrer on this issue has also already been considered and overruled by the Court. (See February 10, 2026, minute order.) The SAC has not been amended in such a manner that raised a new potential argument regarding notice for CLRA;

therefore, GM has no basis to demurrer on these grounds. The Court overrules the demurrer on this basis.

D. Required

Specificity – Violation of the CLRA

Finally, GM demurrers to the fifth cause of action for failure to plead with requisite specificity, specifically on the basis Plaintiffs failed to identify what GM misrepresented. The SAC alleges GM violated Civil Code sections 1770, subdivision (a)(5), (a)(7), (a)(9) and (a)(14), by representing goods or services have characteristics they do not have, are of a particular standard, quality, or grade, or that were not as advertised. (SAC ¶¶ 153-166.) GM argues the SAC does not allege any acts supporting such a violation, as when, where, and how the representations were made.

The Court notes that Plaintiff is bringing a fraudulent concealment claim, not a fraud claim premised on an affirmative misrepresentation. The particularity requirement—facts showing “how, when, where, to whom, and by what means the representations were tendered”—is directed toward affirmative misrepresentations. (*Alfaro v. Cmty. Hous. Improvement Sys. & Plan. Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384.) This requirement is more difficult to apply to pure nondisclosure: “How does one show ‘how’ and ‘by what means’ something didn’t happen, or ‘when’ it never happened, or ‘where’ it never happened?” (*Ibid.*) Instead, courts utilize an exception to the heightened pleading standard for fraud when “the defendant must necessarily possess full information concerning the facts of the controversy” or “when the facts lie more in the knowledge of the opposite party.” (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 158.)

Here, the SAC adequately pleads GM had full or superior knowledge of the defective engine. The SAC alleges, among other facts, GM issued Technical Service Bulletins (“TSBs”) for several issues with the subject defective engine, pursuant to widespread customer issues and internal testing. (SAC ¶¶ 52-64.) The eventual recall of the subject engine was issued after GM conducted and closed three prior investigations into the condition between February 2022 and July 2024. (SAC ¶ 65.) The SAC also alleges GM was made aware of engine defects via consumer complaints as early as 2007. (SAC ¶ 73.) The relevant information was exclusively within the purview of GM,

as it was largely obtained via GM's private research, testing, investigation and information. (SAC ¶ 47.)

The Court finds the SAC has adequately pled that GM both withheld information concerning the defective engine and that GM had exclusive and/or superior knowledge of said information. Therefore, the Court overrules the demurrer as to this issue for the fifth cause of action.

The Court overrules the demurrer in full.

E. Motion
to Strike

GM requests the Court strike the request for punitive damages from the SAC. GM's request is, in part, based upon the Court sustaining the demurrer. As the Court overruled the demurrer in full, the Court does not address this argument.

GM also argues the request for punitive damages should be stricken as the existence of fraud, the basis for the punitive damages, is not proven by clear and convincing evidence. Pursuant to Civil Code section 3294, subdivision a, punitive damages may only be imposed if proven by clear and convincing evidence. However, this is not a pleading standard; this standard controls imposition of punitive damages at trial. Therefore, this is irrelevant for purposes of a motion to strike.

Whether a party may plead a request for punitive damages is based upon the allegations of a complaint. Facts must be alleged in the pleading to support a claim for oppression, fraud, or malice. (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 161.) Here, Plaintiffs adequately pled facts alleging claims for fraud against GM, as addressed previously. Plaintiffs did not merely assert a cause of action for fraud but provided sufficient factual allegations to support said claim. Therefore, the Court denies the motion to strike.

IV. CONCLUSION

Defendant GM US LLC's demurrer to Plaintiffs'

Second Amended Complaint is OVERRULED.

Defendant GM US LLC's motion to strike is
DENIED.

Plaintiffs are ordered to give notice.

DATED:

July 16, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If

a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.